

Amendment No. 1 to HB0062

Terry
Signature of Sponsor

AMEND Senate Bill No. 224

House Bill No. 62*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 63-24-101(2), is amended by deleting the subdivision and substituting:

(2) "Athletic trainer" means a person with specific qualifications as set forth in this chapter, who, upon the advice, consent, and oral or written prescription or referral of a physician licensed under this title, carries out the practice of prevention, recognition, evaluation, management, disposition, treatment, or rehabilitation of athletic injuries; and

SECTION 2. Tennessee Code Annotated, Title 63, Chapter 24, is amended by adding the following as a new section:

(a) An athletic trainer may use dry needling, as defined in § 63-13-103, and physical modalities, such as heat, light, sound, cold, electricity, or mechanical devices, for the prevention, recognition, evaluation, management, disposition, rehabilitation, and treatment of athletic injuries.

(b) An athletic trainer shall only practice in those areas in which an athletic trainer is competent by reason of training or experience that can be substantiated by records or other evidence found acceptable by the board in the exercise of the board's considered discretion.

(c) An athletic trainer shall obtain such training and certification in the practice of dry needling as the board may require by rule. The practice of dry needling by an athletic trainer under this chapter does not constitute the practice of acupuncture under chapter 6, part 10 of this title.

(d) The board is authorized to promulgate rules to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. Tennessee Code Annotated, Section 63-24-111(a), is amended by adding the following as a new subdivision:

(7) Establish minimum competency requirements that an athletic trainer must demonstrate in order to practice dry needling;

SECTION 4. Tennessee Code Annotated, Section 63-24-111, is amended by adding the following as a new subsection (b) and redesignating the existing subsection (b) accordingly:

(b)

(1) The minimum competency requirements, as described in subdivision (a)(7), must include:

(A) At least fifty (50) hours of instruction, which must include each of the following areas:

- (i) Musculoskeletal and neuromuscular systems;
- (ii) Anatomical basis of pain mechanisms, chronic pain, and referral pain;
- (iii) Trigger points; and
- (iv) Universal precaution; and

(B) At least twenty-four (24) hours of dry needling specific instruction, which must include each of the following areas:

- (i) Dry needling technique;
- (ii) Dry needling indications and contraindications;
- (iii) Dry needling documentation;
- (iv) Management of adverse effects;
- (v) Practical psychomotor competency; and
- (vi) Bloodborne pathogens protocol.

(2) The board shall approve the schools and organizations that provide sufficient instruction to satisfy this subsection (b).

SECTION 5. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect September 1, 2025, the public welfare requiring it.